

SERVICE LEVEL AGREEMENT (SLA) FOR KLAES PROPERTY HISTORY SEARCH (PHS) PORTAL

SERVICE LEVEL AGREEMENT

Between

KANO STATE MINISTRY OF LAND AND PHYSICAL PLANNING
(Kano State Land Administration Enterprise System - KLAES)

And

[ORGANIZATION NAME]

For Access to the Property History Search (PHS) Portal

1. PARTIES

This Service Level Agreement ("Agreement") is entered into on this ____ day of _____, 20__, by and between:

1.1 The Kano State Ministry of Land and Physical Planning, represented by the Honourable Commissioner, with its principal office at Kano State Secretariat, Kano, Kano State, Nigeria (hereinafter referred to as "the Ministry" or "KLAES");

AND

1.2 [Organization Name], a [Type of Organization - Bank/Mortgage Institution/Law Firm/etc.] duly incorporated under the laws of the Federal Republic of Nigeria, with its registered office at [Address] (hereinafter referred to as "the Subscriber" or "the Organization").

(Collectively referred to as "the Parties" and individually as "a Party")

2. RECITALS

WHEREAS:

A. The Ministry operates the Kano State Land Administration Enterprise System (KLAES), which includes the Property History Search (PHS) Portal;

B. The PHS Portal is a specialized digital platform designed to provide Financial and Legal Institutions with secure, verified access to property history records and land administration data within Kano State;

C. The Organization desires to subscribe to the PHS Portal services for the purpose of conducting property history searches in connection with its legitimate business operations;

D. The Ministry agrees to provide such services subject to the terms and conditions set forth in this Agreement;

NOW THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows:

3. DEFINITIONS

In this Agreement, unless the context otherwise requires:

- "PHS Portal" means the Property History Search Portal operated by the Ministry under the KLAES framework
- "Search Token" means a digital credit unit purchased by the Subscriber to conduct property history searches on the PHS Portal
- "Authorized User" means an employee or agent of the Subscriber who has been granted login credentials to access the PHS Portal
- "Property History Report" means the digital document generated by the PHS Portal containing verified land records and property transaction history
- "Confidential Information" means all non-public information disclosed by either Party, including but not limited to search queries, property data, user credentials, and business information

4. SCOPE OF SERVICES

4.1 Services Provided

The Ministry shall provide the Subscriber with:

- a) Secure web-based access to the PHS Portal at <https://pagez0.online/phs/>
- b) Ability to conduct property history searches using Search Tokens
- c) Generation of verified Property History Reports containing:
 - Certificate of Occupancy details
 - Right of Occupancy records
 - Deeds registration history
 - Encumbrances and caveats
 - Property transaction records
 - Ownership history
- d) User account management for Authorized Users
- e) Technical support as specified in Section 7

4.2 Service Availability

The Ministry shall use reasonable efforts to ensure the PHS Portal is available:

- Standard Hours: 24 hours a day, 7 days a week
- Scheduled Maintenance: With minimum 48 hours prior notification
- Target Uptime: 95% monthly availability (excluding scheduled maintenance and force majeure events)

5. SUBSCRIPTION AND PAYMENT TERMS

5.1 Subscription Model

- a) This Agreement operates on an annual subscription basis with token-based access
- b) The initial subscription term shall be twelve (12) months commencing from the Effective Date
- c) The subscription shall automatically renew for successive twelve (12) month periods unless terminated by either Party with ninety (90) days written notice prior to renewal

5.2 Search Tokens

- a) The Subscriber shall purchase Search Tokens in advance to conduct property searches
- b) Token pricing: ₦[Amount] per Search Token (subject to annual review with 60 days notice)
- c) Each Property History Report shall consume one (1) Search Token
- d) Tokens are non-transferable and non-refundable except as required by law
- e) Unused tokens at the end of the subscription term may be carried forward for a maximum of ninety (90) days

5.3 Payment Terms

- a) Annual subscription fee: ₦[Amount] payable within thirty (30) days of invoice
- b) Token purchases: Payable in advance via bank transfer, debit card, or other approved payment methods
- c) All fees are exclusive of VAT and other applicable taxes
- d) Late payments shall attract interest at 2% per month

6. AUTHORIZED USERS AND ACCESS MANAGEMENT

6.1 User Accounts

a) The Subscriber may designate up to [Number] Authorized Users during the subscription term

b) Additional Authorized Users may be added upon payment of ₦[Amount] per user per annum

c) The Subscriber shall:

- Provide accurate information for each Authorized User
- Ensure each Authorized User maintains confidential login credentials
- Immediately notify the Ministry of any unauthorized access or credential compromise
- Deactivate access for employees who leave the Organization

6.2 Access Restrictions

a) Access to the PHS Portal is limited to Authorized Users only

b) The Subscriber shall not:

- Share login credentials with non-authorized personnel
- Use the PHS Portal for purposes unrelated to legitimate business operations
- Attempt to circumvent security measures or access controls
- Use automated scripts or bots to conduct searches without prior written consent

7. TECHNICAL SUPPORT AND SERVICE DESK

7.1 Support Availability

The Ministry shall provide technical support:

- Business Hours: Monday - Friday, 8:00 AM - 5:00 PM (excluding public holidays)
- Emergency Support: Available for critical system outages

7.2 Response Times

SN	Issue Severity	Definition	Initial Response	Resolution Target
1	Critical	Complete system outage affecting all users	Within 2 hours	Within 8 hours
2	High	Major functionality impaired	Within 4 hours	Within 24 hours
3	Medium	Minor functionality issue	Within 1 business day	Within 3 business days
4	Low	General inquiry or enhancement request	Within 2 business days	As scheduled

7.3 Support Channels

- Email: phsportal@kano.gov.ng
- Phone: 0803 123 4567, 0909 876 5432
- Portal Ticketing System: Available on PHS Portal dashboard

8. DATA SECURITY AND CONFIDENTIALITY

8.1 Data Protection

a) The Ministry shall implement industry-standard security measures to protect:

- Property records and land administration data
- Subscriber search queries and reports
- User credentials and personal information
- Payment and transaction data

b) All data transmissions shall be encrypted using SSL/TLS protocols

c) Regular security audits and penetration testing shall be conducted

8.2 Confidentiality Obligations

a) Both Parties shall maintain the confidentiality of all Confidential Information received from the other Party

b) Confidential Information shall not be disclosed to third parties except:

- To employees with a legitimate need to know
- As required by law or court order
- With prior written consent of the disclosing Party

c) These confidentiality obligations shall survive termination of this Agreement for a period of five (5) years

8.3 Data Ownership

a) All property records and land administration data remain the exclusive property of the Ministry and the Kano State Government

b) Property History Reports generated for the Subscriber are licensed for the Subscriber's internal business use only

c) The Subscriber shall not resell, redistribute, or commercially exploit Property History Reports without prior written consent

9. SUBSCRIBER OBLIGATIONS

The Subscriber shall:

a) Use the PHS Portal solely for legitimate business purposes related to:

- Mortgage processing and loan underwriting
- Legal due diligence for property transactions
- Property valuation and assessment
- Risk management and compliance

b) Ensure all Authorized Users comply with:

- This Agreement
- Applicable data protection laws
- Professional ethics and confidentiality requirements

c) Maintain accurate and up-to-date organizational information

d) Promptly report any suspected security breaches or system anomalies

e) Not attempt to:

- Reverse engineer the PHS Portal
- Access data beyond authorized scope
- Interfere with system operations
- Impersonate other users or entities

10. INTELLECTUAL PROPERTY RIGHTS

10.1 Ministry Rights

a) The Ministry retains all intellectual property rights in:

- The PHS Portal software and infrastructure
- Property records and land administration databases
- Search algorithms and report templates
- Trademarks, logos, and branding

10.2 Limited License

The Ministry grants the Subscriber a non-exclusive, non-transferable, revocable license to:

- Access and use the PHS Portal during the subscription term

- Generate and retain Property History Reports for internal business use
- Display reports to clients in connection with legitimate transactions

11. WARRANTIES AND DISCLAIMERS

11.1 Ministry Warranties

The Ministry warrants that:

- It has the legal authority to provide access to the property records contained in the PHS Portal
- The PHS Portal will perform substantially in accordance with the documentation provided
- Reasonable efforts will be made to ensure the accuracy of property records based on information available in the Ministry's databases

11.2 Disclaimer

EXCEPT AS EXPRESSLY WARRANTED IN SECTION 11.1, THE PHS PORTAL AND ALL SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO:

- IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT
- WARRANTIES REGARDING THE ACCURACY, COMPLETENESS, OR CURRENCY OF PROPERTY RECORDS (WHICH ARE DEPENDENT ON THE QUALITY AND TIMELINESS OF INFORMATION SUBMITTED TO THE MINISTRY)
- WARRANTIES THAT THE PORTAL WILL BE UNINTERRUPTED, ERROR-FREE, OR FREE FROM VIRUSES OR OTHER HARMFUL COMPONENTS

11.3 No Legal Advice

The Ministry does not provide legal advice through the PHS Portal. Property History Reports are informational tools and should not be construed as legal opinions. Subscribers should seek independent legal counsel for transaction-specific advice.

12. LIMITATION OF LIABILITY

12.1 Exclusion of Consequential Damages

IN NO EVENT SHALL THE MINISTRY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO:

- a) Loss of profits, revenue, or business opportunities
- b) Loss of data or corruption of records
- c) Business interruption
- d) Damages arising from reliance on Property History Reports

12.2 Cap on Liability

THE MINISTRY'S TOTAL AGGREGATE LIABILITY UNDER THIS AGREEMENT, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR OTHERWISE, SHALL NOT EXCEED THE TOTAL AMOUNT PAID BY THE SUBSCRIBER TO THE MINISTRY UNDER THIS AGREEMENT IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

12.3 Exceptions

The limitations in this Section 12 shall not apply to:

- a) Liability arising from the Ministry's gross negligence or willful misconduct
- b) Breach of confidentiality obligations
- c) Infringement of intellectual property rights
- d) Liability that cannot be excluded under applicable law

13. INDEMNIFICATION

13.1 Subscriber Indemnity

The Subscriber shall indemnify, defend, and hold harmless the Ministry, its officers, employees, and agents from and against any claims, damages, losses, liabilities, costs, and expenses (including reasonable legal fees) arising from:

- a) The Subscriber's breach of this Agreement
- b) Unauthorized use of the PHS Portal by the Subscriber's employees or agents
- c) Misuse of Property History Reports
- d) Violation of applicable laws or third-party rights

13.2 Ministry Indemnity

The Ministry shall indemnify the Subscriber against third-party claims alleging that the PHS Portal (as provided by the Ministry) infringes any copyright, trademark, or patent, provided that the Subscriber:

- a) Promptly notifies the Ministry of such claim
- b) Allows the Ministry sole control of the defense and settlement
- c) Provides reasonable cooperation in the defense

14. TERM AND TERMINATION

14.1 Term

This Agreement shall commence on the Effective Date and continue for the initial twelve (12) month subscription term, with automatic renewal for successive twelve (12) month periods unless terminated as provided herein.

14.2 Termination for Convenience

Either Party may terminate this Agreement without cause by providing ninety (90) days written notice to the other Party prior to the end of the then-current subscription term.

14.3 Termination for Cause

Either Party may terminate this Agreement immediately upon written notice if:

- a) The other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days of written notice
- b) The other Party becomes insolvent, files for bankruptcy, or has a receiver appointed
- c) The other Party ceases to conduct business in the normal course

14.4 Effect of Termination

Upon termination:

- a) The Subscriber's access to the PHS Portal shall cease
- b) The Subscriber may retain Property History Reports generated prior to termination for record-keeping and ongoing transaction purposes
- c) Unused Search Tokens shall be forfeited unless termination is initiated by the Ministry for convenience

d) Confidentiality obligations shall survive termination

e) Sections 11 (Warranties), 12 (Limitation of Liability), 13 (Indemnification), 15 (Force Majeure), 16 (Governing Law), and 17 (Dispute Resolution) shall survive termination

15. FORCE MAJEURE

Neither Party shall be liable for any failure or delay in performing its obligations under this Agreement (except payment obligations) if such failure or delay is caused by circumstances beyond its reasonable control, including but not limited to:

a) Acts of God, natural disasters, or epidemics

b) War, terrorism, civil unrest, or government action

c) Power outages, telecommunications failures, or internet service disruptions

d) Labor disputes or strikes

e) Fires, floods, or other catastrophic events

The affected Party shall notify the other Party within five (5) business days of the force majeure event and use reasonable efforts to mitigate its impact.

16. GOVERNING LAW AND JURISDICTION

16.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Nigeria and the laws of Kano State.

16.2 Jurisdiction

The Parties submit to the exclusive jurisdiction of the courts of Kano State, Nigeria, for the resolution of any disputes arising out of or relating to this Agreement.

17. DISPUTE RESOLUTION

17.1 Amicable Resolution

In the event of any dispute, controversy, or claim arising out of or relating to this Agreement, the Parties shall first attempt to resolve the matter amicably through good-faith negotiations between senior executives within thirty (30) days of written notice of the dispute.

17.2 Mediation

If negotiation fails, the Parties agree to submit the dispute to mediation before a mutually agreed mediator in Kano, Kano State, Nigeria.

17.3 Litigation

If mediation is unsuccessful within sixty (60) days, either Party may pursue legal remedies in the courts of competent jurisdiction in Kano State, Nigeria.

18. GENERAL PROVISIONS

18.1 Entire Agreement

This Agreement, together with any schedules and exhibits attached hereto, constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written.

18.2 Amendments

No amendment or modification of this Agreement shall be valid or binding unless made in writing and signed by authorized representatives of both Parties.

18.3 Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the validity, legality, and enforceability of the remaining provisions shall not in any way be affected or impaired thereby.

18.4 Waiver

No waiver of any provision of this Agreement shall be effective unless made in writing and signed by the waiving Party. No failure or delay by a Party in exercising any right shall operate as a waiver thereof.

18.5 Assignment

The Subscriber shall not assign, transfer, or subcontract any of its rights or obligations under this Agreement without the prior written consent of the Ministry. The Ministry may assign this Agreement in connection with a merger, acquisition, or transfer of substantially all of its assets.

18.6 Notices

All notices under this Agreement shall be in writing and delivered by:

- a) Registered mail with return receipt requested
- b) Reputable courier service
- c) Email with confirmation of receipt

Notices shall be sent to the addresses specified in Section 1 or such other addresses as may be designated in writing.

18.7 Relationship of Parties

Nothing in this Agreement shall be construed to create a partnership, joint venture, or agency relationship between the Parties. Each Party is an independent contractor.

18.8 Third-Party Beneficiaries

This Agreement is intended solely for the benefit of the Parties and their respective successors and permitted assigns. No third party shall have any right to enforce any provision of this Agreement.

18.9 Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed valid and binding.

19. SCHEDULES

Schedule A: Subscription Fees and Token Pricing

Schedule B: Authorized Users List

Schedule C: Service Specifications and Technical Requirements

Schedule D: Data Protection and Privacy Policy

20. EXECUTION

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed by their duly authorized representatives as of the date first written above.

FOR: KANO STATE MINISTRY OF LAND AND PHYSICAL PLANNING

For Honourable Commissioner

Kano State Ministry of Land and Physical Planning

Date: _____

FOR: [ORGANIZATION NAME]

[Name]

[Title]

[Organization Name]

Date: _____

WITNESSED BY:

Name:

Title:

Date:
